

María González López
123 Main Street, Apt 4B
Houston, TX 77002
Phone: (713) 555-0100
Email: maria@example.com

Date: _____

Sent by email to: INAfees@cbp.dhs.gov

RE: Written Dispute of Notice of Fee Assessment Under 8 U.S.C. § 1815

Name: María González López

File No.: A# 012-345-678

Fee Tracking Number: F26-778899

Notice of Fee Assessment Under 8 U.S.C. § 1815 dated September 20, 2026

Dear Sir or Madam:

I dispute the Notice of Fee Assessment Under 8 U.S.C. § 1815 dated September 20, 2026 (Fee Tracking Number F26-778899). I do not agree that I owe this fee.

Attached is my Pro Se Written Defense, Answer, and Brief in Opposition, signed under penalty of perjury, which explains why the fee should not be imposed.

I also request to inspect and copy the records related to this debt.

Please send all letters about this matter to me at the address above.

Sincerely,

María González López

Enclosures:

1. Pro Se Written Defense, Answer, and Brief in Opposition
2. Certificate of Translation
3. Copy of the Notice of Fee Assessment Under 8 U.S.C. § 1815

U.S. DEPARTMENT OF HOMELAND SECURITY

In the Matter of

María González López

Respondent

File No. A# 012-345-678

Fee Tracking Number: F26-778899

**PRO SE WRITTEN DEFENSE, ANSWER, AND BRIEF IN OPPOSITION TO
IMPOSITION OF CIVIL PENALTY AND NOTICE OF FEE ASSESSMENT**

Print Name: María González López

Street Address: 123 Main Street, Apt 4B

City, State, Zip: Houston, TX 77002

Email (if any): maria@example.com

I hereby declare under penalty of perjury, pursuant to 28 U.S. Code § 1746:

1. My name is María González López. I live at 123 Main Street, Apt 4B, Houston, TX 77002.
2. I am submitting this Opposition to the Notice of Fee Assessment Under 8 U.S.C. § 1815 (“Notice”) that I received from the Department of Homeland Security (“DHS”).
3. The Notice was dated September 20, 2026.
4. The Notice was given to me in person on September 20, 2026.
5. The Notice says that I am supposed to pay fines in the amount of \$5,130.00 (“Fines”).
6. The Notice that I received was issued under 8 U.S.C. § 1815 (apprehension between ports of entry).
I was fined in the interior of the U.S., not between ports of entry.
I entered the U.S. before July 4, 2025, the date that this law was enacted.
7. I do not have the financial means to pay the Fines, which are incredibly high and

pose an unreasonable burden on me and my family.

8. I came to the United States in March 2016. I entered the United States with a visa, after an immigration officer inspected me at an official port of entry. I was not apprehended while entering the United States. Immigration officers first stopped me in Houston, Texas on or about May 1, 2023, inside the United States and away from the border. The Notice is dated September 20, 2026, more than 3 years after immigration officers first stopped me. I was not given this fine at the time I was apprehended. I applied for protection in the United States (asylum, withholding of removal, or protection under the Convention Against Torture). It is still pending (waiting for a decision). I applied for a work permit. It was approved.

9. My family depends on me. This includes my spouse or partner and my three children. I work as a cook in a restaurant. I earn about \$2,400 per month. After I pay for rent, food, and other basic needs, I have very little money left over. I have no savings. I file taxes in the United States. My daughter has asthma and needs medicine every day.

10. I volunteer at my church every week.

11. I understand that I may have defenses against the Fines, including:

- a. The Notice violates the guarantee of Due Process in the Fifth Amendment to the U.S. Constitution, in different possible ways, which may include things such as:
 - i. I do not meet the legal requirements to be fined.
 - ii. I was never warned that I might face Fines like these.
 - iii. DHS has provided no evidence with their Notice, and this keeps me from being able to respond in a meaningful way.
 - iv. The Notice refers to defenses but does not say what factors would be considered for any defenses that I might have. This keeps me from being able to raise my defenses in a meaningful way.
 - v. The decisions about the Fine were not made by a neutral fact finder. Instead, they were made by DHS, which is the same agency making the accusations against me, and which would also be the same agency deciding any appeal. This is fundamentally unfair.
- b. The Notice violates my Seventh Amendment right to trial by jury by imposing civil penalties intended to punish me, and by doing so without a jury trial about whether I am liable for knowingly violating the law.
- c. DHS is intentionally inflicting emotional distress on me through the Notice, by levying excessive, punitive, and grossly disproportionate Fines against me, and doing so with all the constitutional violations that I have listed here.

12. If DHS decides to fine me anyway, in spite of all the things I have said here, then the fines should be minimal because of mitigating factors in my case.

13. For all these reasons, DHS should withdraw the Fine in my case. If it fails to do so, it should at least significantly mitigate that Fine and impose only a minimal fine instead.

14. For the various violations of my rights detailed above, I reserve the right to bring legal actions under any applicable federal laws to protect my rights.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Today's date: _____

My City and State: Houston, TX

Signature

María González López
Printed Name

123 Main Street, Apt 4B
Address, Line 1

Houston, TX 77002
Address, Line 2

CERTIFICATE OF TRANSLATION

I, Ana Ruiz, hereby declare that I am competent to translate between the Spanish and English languages. On _____, I read and translated aloud the foregoing PRO SE WRITTEN DEFENSE, ANSWER, AND BRIEF IN OPPOSITION TO IMPOSITION OF CIVIL PENALTY AND NOTICE OF FEE ASSESSMENT to María González López, and believe that María González López understands the contents thereof.

Pursuant to 28 U.S.C. § 1746, I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on: _____

Signature of Translator

Ana Ruiz
Printed Name

55 Elm St
Address, Line 1

Houston, TX 77003
Address, Line 2